DOC TYPE: Master Services & IP Agreement
DOC ID: BA-VC-MSIA-2026-V1.0
DRAFT DATE: October 07, 2026

STRICTLY CONFIDENTIAL
BILATERAL LEGAL REVIEW EDITION

Black Angler
BLACK ANGLER PVT LTD
Executive Project Governance

MASTER SERVICES & INTELLECTUAL PROPERTY AGREEMENT

CLINIC WEBSITE, WHATSAPP AUTOMATION, DIGITAL RECORDS & GOOGLE BUSINESS PROFILE / LOCAL SEO

0. PURPOSE OF THIS DOCUMENT & LEGAL-REVIEW CHECKLIST

Document Status:	DRAFT v1.0, for bilateral legal review	**Access Mode:**	Read-only. Comments via Section 25 Review Log
Governing Law:	Laws of India (Maharashtra Jurisdiction)	**Draft Date:**	October 07, 2026

LEGAL NOTICE: This draft is a structured working document. Each party should have it reviewed by its advocate/Chartered Accountant before signing. Items in `[square brackets]` are placeholders or defaults to be confirmed. Hand-written entries or bracket populating prior to signing are legally valid under the Indian Contract Act, 1872.

This document records the legal terms on which Black Angler will build and support the digital systems for Ms. Palak Paresh Gandhi's proposed clinic (Vani's Clinic) in Satara, Maharashtra. It is organized into four heart-of-the-deal pillars:

1. **Intellectual Property Boundaries:** Client owns final custom code and content. Black Angler retains reusable templates, frameworks, and Background IP (Sections 7-11).
2. **Payment Timelines & Milestones:** Structured milestone payments (Section 12).
3. **Statutory Tax Responsibilities:** GST & TDS compliance (Section 13).
4. **Liability Caps & Exclusions:** Defined liability caps and risk allocation (Section 17).

OPEN POINTS FOR BOTH LEGAL REVIEWERS

#	REVIEW POINT	RESPONSIBLE OWNER
1	Legal status and registered address of Black Angler (Proprietorship / Partnership / LLP / Pvt Ltd).	Black Angler
2	Contracting entity on Client side (Ms. Gandhi as individual today; clinic entity if formed later).	Client
3	GST registration status of Black Angler and tax treatment.	Black Angler CA
4	TDS deduction applicability and rate under Income-tax Act (Section 13.3).	Client CA
5	Stamp duty payable under Maharashtra Stamp Act, 1958.	Both Advocates
6	Seat and venue of arbitration (Section 21).	Both Parties
7	Fee amounts, milestone percentages, and liability cap multiples.	Both Parties
8	MSMED Act 2006 registration status of Black Angler (Section 12.6).	Black Angler
9	Chain-of-title confirmation for all contributor IP assignments (Section 8.5).	Black Angler
10	Client professional RCI registration status & compliance (Section 16).	Client

1. PARTIES

1.1 Service Provider: [Black Angler], a [proprietorship / partnership firm / LLP / company incorporated under the Companies Act, 2013], having its principal place of business at [address], GSTIN [_____], PAN [_____], represented by [name, designation] ("**Black Angler**", "**Service Provider**").

1.2 Client: Ms. Palak Paresh Gandhi, an individual and healthcare practitioner (Audiologist & Speech-Language Pathologist), residing at 'Vaibhav', 98 Pratapganj Peth, near Radhika Talkies, Satara, Maharashtra 415002, PAN [_____], GST [_____], acting for herself and for the clinic to be established under the name **[Vani's Clinic]** ("**Client**").

2. BACKGROUND

2.1 The Client intends to open a clinic in Satara offering Speech & Language Therapy, Audiology, and (subject to Section 16.2) Cognitive Behavioural Therapy.

2.2 The Client engages Black Angler to deliver a website, WhatsApp appointment automation, digital patient records, and Google Business Profile local SEO optimization (Schedule A).

3. DEFINITIONS, INTERPRETATION & STRUCTURE

TERM	DEFINED MEANING
Agreement	This document with its Schedules, and any signed Change Request.
Background IP	All IP owned or developed by Black Angler prior to or independently of this engagement, including code libraries, frameworks, UI kits, templates, workflows, and tools (Section 9).
Client Materials	All content, data, logos, trademarks, photographs, clinical formats, and text supplied by the Client.
Client Data	All data entered into or generated within the Deliverables relating to the Client's clinic or patients (DPDP Act 2023).
Deliverables	The items listed in Schedule A, in final accepted form.
Custom Deliverables	The portion created specifically for the Client under this Agreement (custom source code, configurations, designs, clinical field structures), excluding Background IP and Third-Party Components.

4. TERM & STRUCTURE OF ENGAGEMENT

4.1 Commences on Effective Date and continues until completion of all Deliverables and agreed support period.

4.2 Phased execution: Phase 1 (Website + GMB), Phase 2 (WhatsApp + Records), Phase 3 (Optional Maintenance Retainer).

5. SERVICES & ACCEPTANCE

5.1 Scope provided with reasonable skill and care. Client responds to reviews within [3] working days.

5.2 Milestone acceptance period: **[5] working days**. Deemed accepted if no written non-conformity notice is received.

5.3 No Search Engine or Patient Volume Guarantee: SEO activities performed per Schedule A without traffic guarantees.

6. CHANGE REQUESTS

6.1 Work outside Schedule A requires a written Change Request specifying scope, price, and timeline signed by both Parties.

7. INTELLECTUAL PROPERTY: CORE ALLOCATION (KEY CLAUSE)

IP CATEGORY	OWNER	GOVERNING CONDITIONS
Custom Deliverables	**Client**	Assigned in writing under Section 7.2 upon Full Payment (Section 7.3).
Client Materials & Data	**Client**	Owned by Client at all times. Limited operational license to Service Provider.
Background IP	**Black Angler**	Retained by Black Angler; licensed perpetually to Client for clinic use (Section 8).
Third-Party Components	**Licensors**	Governed by Meta, Google, and open-source license terms (Section 10).
Accounts & Domain Names	**Client**	Registered in Client's name; Black Angler acts as delegated administrator only.

7.2 Statutory Assignment (Sections 18 & 19, Copyright Act 1957): Black Angler irrevocably assigns all copyright in Custom Deliverables to the Client worldwide for full term of copyright upon Full Payment.

8. BACKGROUND IP: RETAINED BY BLACK ANGLER, LICENSED TO CLIENT

8.1 Black Angler grants Client a perpetual, worldwide, royalty-free, non-exclusive license to use embedded Background IP as part of the Deliverables.

9. DERIVATIVE WORKS BOUNDARY RULES

Generic workflow patterns and code frameworks remain Black Angler Background IP. Custom layout layers and client-specific clinical field schemas are Client-owned Custom Deliverables.

10. THIRD-PARTY COMPONENTS & PASS-THROUGH COSTS

Pass-through costs (domain, hosting, SSL, Meta WhatsApp API fees) payable by Client at actuals or reimbursed with a [10]% handling charge.

11. ACCOUNTS, DOMAINS & CREDENTIALS

All accounts (Domain, Google Business Profile, WhatsApp API, Hosting) registered in Client's name. Black Angler shall not lock or withhold access.

12. FEES AND PAYMENT TIMELINES

MILESTONE	TRIGGER	PERCENTAGE & DUE DATE
M1: Advance / Mobilisation	Signing of Agreement	**[40]%** on signing
M2: Design & Staging	Delivery of staging link	**[30]%** within [5] days
M3: Go-Live & Handover	Final Go-Live & acceptance	**[30]%** within [7] days (Before source code release)

Overdue interest rate: **[1.5]% per month** after [7] days notice.

13. STATUTORY TAX RESPONSIBILITIES (GST & TDS)

13.2 GST: Applicable GST (currently **[18]%** under SAC 998314) charged in addition to Fees. CGST+SGST for intra-state Maharashtra supply; IGST for inter-state.

13.3 TDS: Deducted at applicable statutory rates on taxable value excluding GST. Client shall provide Form 16A TDS certificate.

13.5 Stamp Duty: Payable under Maharashtra Stamp Act, 1958 as agreed by advocates.

14. CONFIDENTIALITY

Confidential Information protected for [5] years post-termination; patient data and trade secrets protected indefinitely.

15. DATA PROTECTION, PRIVACY & DPDP ACT 2023 COMPLIANCE

Client is Data Fiduciary; Black Angler is Data Processor under DPDP Act 2023. Encryption in transit & at rest. Data hosted in [India]. 48-hour breach notification window.

16. REGULATORY & HEALTHCARE COMPLIANCE

Client responsible for RCI registration and regulatory compliance. CBT positioned as Counselling Support unless certified. Compliance with Consumer Protection Act 2019.

17. WARRANTIES, DISCLAIMERS & LIMITATION OF LIABILITY

Warranty Period: **[30] days** post Go-Live. Aggregate liability cap: Total Fees paid in preceding [12] months or INR [__]. Uncapped for fraud, wilful misconduct, and IP infringement.

18. INDEMNITIES

Black Angler indemnifies Client against third-party IP infringement claims in India. Client indemnifies Black Angler against claims arising from Client Materials, clinical practice, or regulatory defaults.

19. TERMINATION

Termination for convenience on [30] days notice. Immediate termination for uncured material breach ([15] days cure window).

20. SUPPORT & MAINTENANCE

Post-warranty support provided under Phase 3 Maintenance Order during business hours [Mon-Sat, 10:00 to 18:00 IST].

21. GOVERNING LAW & ARBITRATION

Governed by laws of India. Arbitration under Arbitration & Conciliation Act 1996. Seat and venue: **[Pune / Satara], Maharashtra**.

22. GENERAL PROVISIONS

Independent contractors, force majeure ([30] days threshold), non-solicitation ([12] months), electronic signatures valid under IT Act 2000 (Section 10A).

23. SIGNATURES & EXECUTION BLOCK

Executed on the date of last signature below. Filling in bracketed placeholders in ink prior to execution is legally valid under the Indian Contract Act, 1872.

FOR SERVICE PROVIDER (BLACK ANGLER):	**FOR CLIENT (VANI'S CLINIC):**
Signature: _____ Name: **Shreeharsh Shivpuje** Designation: Lead Director & Executive Officer PAN / GSTIN: [_____] Date: October 07, 2026 | Place: Satara	Signature: _____ Name: **Palak Paresh Gandhi** Designation: Audiologist & SLP / Proprietor PAN / GSTIN: [_____] Date: October 07, 2026 | Place: Satara

24. SCHEDULES & REVIEW LOG SUMMARY

- **Schedule A:** Scope of Services (Phase 1 Website/GMB, Phase 2 WhatsApp/Records, Phase 3 Maintenance).
- **Schedule B:** Fees & Payment Milestones (Phase 1 INR [__], Phase 2 INR [__], Phase 3 INR [__]/mo).
- **Schedule C:** IP Register (Custom Deliverables vs Background IP vs Third-Party Components).
- **Schedule D:** Data Processing Details & Sub-processors (DPDP Act 2023 compliance).
- **Section 25 Review Log:** Bilateral comment tracking & version control.